

SOTOMAYOR, J., concurring in part

here is not only warranted, but compelled. Second, the interests at stake point far more clearly to that outcome than those in other recent cases. And finally, the racially biased origins of the Louisiana and Oregon laws uniquely matter here.

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Both the majority and the dissent rightly emphasize that *stare decisis* “has been a fundamental part of our jurisprudence since the founding.” *Post*, at 150 (opinion of ALITO, J.); see *ante*, at 105. Indeed, “[w]e generally adhere to our prior decisions, even if we question their soundness, because doing so ‘promotes the evenhanded, predictable, and consistent development of legal principles, fosters reliance on judicial decisions, and contributes to the actual and perceived integrity of the judicial process.’” *Alleynes v. United States*, 570 U. S. 99, 118 (2013) (SOTOMAYOR, J., concurring) (quoting *Payne v. Tennessee*, 501 U. S. 808, 827 (1991)).

But put simply, this is not a case where we cast aside precedent “simply because a majority of this Court now disagrees with” it. *Alleynes*, 570 U. S., at 133 (ALITO, J., dissenting). Rather, *Apodaca v. Oregon*, 406 U. S. 404 (1972), was on shaky ground from the start. That was not because of the functionalist analysis of that Court’s plurality: Reasonable minds have disagreed over time—and continue to disagree—about the best mode of constitutional interpretation. That the plurality in *Apodaca* used different interpretive tools from the majority here is not a reason on its own to discard precedent.

What matters instead is that, as the majority rightly stresses, *Apodaca* is a universe of one—an opinion uniquely irreconcilable with not just one, but two, strands of constitutional precedent well established both before and after the decision. The Court has long recognized that the Sixth Amendment requires unanimity. *Ante*, at 96, 106–108. Five Justices in *Apodaca* itself disagreed with that plurality’s contrary view of the Sixth Amendment. Justice Powell’s the-